

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Appeal No. 2330 of 2023

Md. Rakibul Hasan @ Rakib and another
.... Accused-Appellants

-Versus-

The State

.... Opposite Party

Ms. Naznen Sultana Sukhee, Advocate

.... For the Appellants.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 17.01.2024

S M Kuddus Zaman, J:

This appeal at the instance of accused Md. Rakibul Hasan @ Rakib and Md. Karim Khan @ Kalu is directed against order No. 31 dated 28.02.2023 passed by the learned Additional Session Judge, Court No. 1, Chattogram and Special Tribunal No. 2, Chattogram rejecting the petition of the bail of above appellants.

Facts in short are that 75(seventy five) kg of gold was recovered from a Jeep from Jorarganj, Chattogram while above car was proceeding towards Dhaka. Both the petitioners were arrested

from inside above Jeep and both the appellants have made separate confession under section 164 of the Code of Criminal Procedure.

Ms. Naznen Sultana Sukhee, learned Advocate for the petitioners submits that the appellants were mere carriers of above gold not the owners of the same and since they were arrested on their way to Dhaka, the case does not fall under section 25B of the Special Power Act.

They are in custody for about 05(five) years but the trial has not yet been commenced.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection against granting of bail to the petitioners at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above, 75(seventy five) kg gold was recovered and seized from the possession of the appellants who boarding a Jeep were coming to Dhaka. Both the appellants have given separate confessions under section 164 of the Code of Criminal Procedure before Judicial Magistrate. They have confessed that above gold was in their possession in the above Jeep and the gold was being taken for smuggling to India. The place of recovery of above gold is far away from the international border but above acts of the appellants may fall under section 25D of the Special Power Act, 1974. The petitioners are in custody for about 05(five) years.

We are unable to understand as to why the learned Judge of the Special Tribunal No. 2, Chattogram could not conclude the trial of the case despite issuance of a direction from this Court.

On consideration of the quantity of the gold allegedly recovered from the possession of the appellants, we are not inclined to grant bail of the appellants at this stage of the proceedings, but we feel it necessary to issue a direction upon both learned the Judge of the Special Tribunal and the Superintendent of the Police, Chattogram in order to conclude the trial of the case considering the long custody of the appellants.

The learned Judge of the Special Tribunal No. 2, Chattogram is directed to conclude the trial of the case within 06(six) months from the date of receipt of this order without granting adjournment beyond 15(fifteen) days but if he fail to conclude the trial within this period he will have to explain in writing to this Court through the Register General of Supreme Court as to why he failed to conclude the trial and he will also consider the petition for bail if any of the appellants in accordance with law.

We are also directing the Superintendent of Police, Chattogram to produce the witnesses before the Special Tribunal on the date to be fixed for trial of this case without any fail.

Let copies of the order to be transmitted to the learned Judge of the Special Tribunal No. 2, Chattogram and Superintendent of Police, Chattogram at once.

In the result, the appeal is disposed of.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.